Dred Scott v. Sandford

U.S. Supreme Court · 60 U.S. 393 · March 6, 1857 · Chief Justice Roger Taney (majority)

Source: Oyez Project, oyez.org/cases/1850-1900/60us393; Cornell LII, law.cornell.edu/supremecourt/text/60/393.

Dred Scott was an enslaved man who had lived with his enslaver in free Illinois and the Wisconsin Territory (where the Missouri Compromise of 1820 had banned slavery) before returning to Missouri. He sued for freedom on the basis of that residence. Chief Justice Taney's majority opinion ruled (1) that Black Americans could never be U.S. citizens and thus could not sue in federal court, and (2) that Congress had no power to ban slavery in the territories — striking down the Missouri Compromise. The ruling made political compromise on slavery essentially impossible and helped propel the country toward war.

Connect: Dred Scott overturned the Missouri Compromise (Class 8). How does the Supreme Court's role here connect back to Marbury (Class 8) — is Taney using the same tool for opposite ends?

Key Passages

On citizenship (Taney)

> [The framers] had for more than a century before been regarded as beings of an inferior order, and altogether unfit to associate with the white race … and so far inferior, that they had no rights which the white man was bound to respect.

On the Missouri Compromise

> The Act of Congress, which prohibited a citizen from holding and owning property of this kind in the territory of the United States north of the line therein mentioned, is not warranted by the Constitution, and is therefore void.

From Justice Curtis's dissent

> At the time of the ratification of the Articles of Confederation, all free native-born inhabitants of the States of New Hampshire, Massachusetts, New York, New Jersey, and North Carolina, though descended from African slaves, were not only citizens of those States, but such of them as had the other necessary qualifications possessed the franchise of electors, on equal terms with other citizens.

HIPP Analysis

Model answers fill the first three rows. Use them to explain the author's Purpose in the last row.

HIPP Element	Your Analysis
Historical Situation *What was happening when this was written?*	Rising sectional tension after the Kansas-Nebraska Act and 'Bleeding Kansas'; President Buchanan hoped the Court would settle the slavery-in-the-territories question.
Intended Audience *Who was the source written for?*	The parties to the case, Congress, and the nation, especially the political parties fighting over slavery in the territories.
Point of View *Whose perspective? Whose is missing?*	Chief Justice Roger Taney, a Marylander and former enslaver who defended slavery and Southern interests; Black Americans' perspective is excluded entirely.

HIPP Element	Your Analysis
Purpose *What did the author want to accomplish?*	

Analysis Prompts

1. SAQ — explain significance: Explain ONE way Dred Scott pushed the country closer to civil war.

2. How did Lincoln respond to the decision in his 1858 debates with Douglas?

3. Why does Curtis's dissent matter historically, even though it lost the case?